

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PINELLAS COUNTY, FLORIDA
CIVIL DIVISION

CASE NO. 26-002613-CI

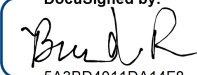
DENNIS M. HEWETT, as Personal
Representative of the Estate of
RICHARD W. MELILLO A/K/A
RICHARD W. RADKA, A/K/A RICK
RADKA, A/K/A RICHARD W. KWAST,

Plaintiff,

v.

BRANDI ROGERS, and all those
claiming by, through or under said
individual(s),

Defendants.

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**DEFENDANT'S ANSWER, AFFIRMATIVE DEFENSES, COUNTERCLAIMS,
AND DEMAND FOR JURY TRIAL**

Defendant, BRANDI L. RODGERS, incorrectly named in the Complaint as "Brandi Rogers," appearing pro se, answers Plaintiff's First Amended Complaint for Ejectment, asserts her affirmative defenses and counterclaims, and demands trial by jury, and states:

ANSWER

1. In response to paragraph 1, Defendant admits that the Complaint purports to state an action to recover possession of real property located in Pinellas County, Florida, and denies that Plaintiff is entitled to recover possession.

2. In response to paragraph 2, Defendant admits that the real property commonly known as 13721 94th Ave., Seminole, Florida 33776, Parcel No. 19-30-15-62658-000-2710, is located in Pinellas County, Florida, and that its correct legal description is Lot 271, OAKHURST GROVES, according to the plat thereof recorded in Plat Book 46, Pages 16 and 17, Public Records of Pinellas County, Florida (the "Property"). Defendant denies that Plaintiff is the fee simple owner of the Property; denies that the legal description pleaded in paragraph 2 ("Lot 27") correctly describes the Property; denies that Exhibit "A" to the Complaint shows title in Plaintiff; and denies the remaining allegations of paragraph 2. Fee simple title to the Property vested in Defendant by operation of law upon the death of Richard W. Melillo, as set forth in Defendant's Statement of Chain of Title below.

3. In response to paragraph 3, Defendant admits that she is in possession of the Property and avers that her possession is lawful as the fee simple owner of the Property.

4. Paragraph 4 is denied. Defendant disputes Plaintiff's claimed chain of title, which cites an instrument unrelated to the Property, omits the recorded instrument through which the decedent himself took title, and identifies no instrument vesting any title in Plaintiff or the estate.

5. In response to paragraph 5, Defendant admits that in March 2026 a written demand to vacate was posted at the Property, admits that she has not surrendered possession, and admits that she has not paid Plaintiff for use of the Property because no such payment is or ever was owed. Defendant denies that Plaintiff was or is entitled to possession of the Property or to demand possession of it. Defendant is without knowledge whether Exhibit "B" to the Complaint is a true and correct copy of the notice described, and that allegation is therefore denied. All remaining allegations of paragraph 5 are denied.

6. Defendant denies each and every allegation of the Complaint not expressly admitted in this Answer.

**DEFENDANT'S STATEMENT OF CHAIN OF TITLE (SECTION 66.021(7),
FLORIDA STATUTES)**

7. Pursuant to section 66.021(7), Florida Statutes, Defendant states her chain of title to the Property, chronologically, as follows in paragraphs 8 through 14.

8. Deed dated 6/16/1977 DEED from Walter L. Moose and Iola L. Moose, husband and wife, as grantors, to William F. Melillo and Rebecca B. Melillo, husband and wife, as grantees, recorded in Official Records Book 4561, Page 1084, Public Records of Pinellas County, Florida
Book/page 4561/1084

9. Rebecca B. Melillo died on May 26, 2010. William F. Melillo and Rebecca B. Melillo held the Property as tenants by the entireties, and upon her death William F. Melillo became the sole owner of the Property by operation of law.

10. Enhanced life estate deed dated July 9, 2020, from William F. Melillo, as grantor, reserving to himself a life estate coupled with the power to sell, convey, mortgage, lease, and otherwise dispose of the Property, and conveying the remainder to Richard W. Melillo, recorded July 14, 2020, in Official Records Book 21077, Page 809, Instrument No. 2020208528, Public Records of Pinellas County, Florida. A copy of this recorded deed is attached as Exhibit "B."

11. William F. Melillo died on July 8, 2022. Upon his death, fee simple title to the Property vested in Richard W. Melillo by operation of law.

12. Quitclaim deed dated September 13, 2025, from Richard W. Melillo f/k/a Richard W. Radka, unmarried, as grantor, reserving to himself an enhanced life estate coupled with the full power and authority to sell, convey, mortgage, lease, and otherwise dispose of the Property in fee simple, with or without consideration, without the joinder of the remainderman, and conveying the remainder interest upon his death to Brandi L. Rodgers, executed in the presence of two subscribing witnesses, Scott J. Rodgers and Christopher T. Kraft. This deed has not yet been recorded. A copy of this deed is attached as Exhibit "A."

13. Richard W. Melillo died on JANUARY 2026. Upon his death, fee simple title to the Property vested in Brandi L. Rodgers by operation of law.

14. Plaintiff and Defendant each claim title under Richard W. Melillo, deceased, who is the common source of title. Deraignment of title before the common source is set forth above for completeness; under section 66.021(7), Florida Statutes, deraignment beyond the common source is not required.

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE — TITLE AND SUPERIOR RIGHT OF POSSESSION IN DEFENDANT

15. On September 13, 2025, Richard W. Melillo executed and delivered a quitclaim deed, in the presence of two subscribing witnesses, by which he reserved an enhanced life estate in the Property and conveyed the remainder interest upon his death to Defendant.

16. Richard W. Melillo died on JANUARY 2026. Upon his death, fee simple title to the Property and the right of possession vested in Defendant by operation of law, without the need for probate administration.

17. An action for ejectment may be maintained only by a person with a superior right to possession of the property. Because fee simple title and the right of possession vested in Defendant upon the decedent's death, Plaintiff does not hold and cannot prove title or a right of possession superior to Defendant's, and Plaintiff cannot recover in ejectment.

SECOND AFFIRMATIVE DEFENSE — LACK OF STANDING AND AUTHORITY OF THE PERSONAL REPRESENTATIVE; PROTECTED HOMESTEAD PROPERTY

18. At his death, Richard W. Melillo resided on the Property as his primary and permanent residence, and the Property was his homestead. He was unmarried at death and was not survived by any minor child.

19. Protected homestead is not an asset of the probate estate and passes outside of probate administration. Under section 733.607(1), Florida Statutes, a personal representative is entitled to take possession of the decedent's property except the protected homestead, and under

section 733.608(2), Florida Statutes, a personal representative may take possession of property that appears to be protected homestead only if the property is not occupied by a person who appears to have an interest in the property.

20. Defendant occupies the Property and claims an interest in it under the September 13, 2025 deed described above. Title to the Property passed at the decedent's death outside of the estate. Plaintiff, as personal representative, therefore lacks standing and authority to take possession of the Property or to maintain this action to eject Defendant from it.

THIRD AFFIRMATIVE DEFENSE — DEFECTIVE DERAIGNMENT OF TITLE

21. The statement of chain of title attached to the Complaint as Exhibit "A" relies upon an Agreement for Deed recorded in Official Records Book 3616, Page 321, Public Records of Pinellas County, Florida, an instrument that does not concern the Property. The 1977 conveyance of the Property from Walter L. Moose and Iola L. Moose to William F. Melillo and Rebecca B. Melillo is recorded in Official Records Book 4561, Page 1084, Public Records of Pinellas County, Florida.

22. Exhibit "A" to the Complaint omits the recorded enhanced life estate deed of July 14, 2020 (Official Records Book 21077, Page 809, Instrument No. 2020208528), through which the decedent, Richard W. Melillo, himself took title to the Property, and identifies no instrument or devolution vesting title in the decedent, in the estate, or in Plaintiff. As pleaded, Plaintiff's chain of title never reaches Plaintiff.

23. The Complaint also pleads a legal description ("Lot 27, OAKHURST GROVES") that is inconsistent with the parcel number pleaded in the same paragraph (19-30-15-62658-000-2710, which corresponds to Lot 271, OAKHURST GROVES) and does not correctly describe the Property.

24. The Complaint accordingly fails to comply with section 66.021(7), Florida Statutes, and fails to state a cause of action for ejectment. Defendant reserves the right to test the legal sufficiency of any instrument in Plaintiff's chain of title by motion before trial pursuant to section 66.021(8), Florida Statutes.

FOURTH AFFIRMATIVE DEFENSE — INSUFFICIENCY OF SERVICE OF PROCESS AS TO THE ORIGINAL SUMMONS

25. Defendant was never personally served with the original summons and original complaint in this action. On or about March 9, 2026, papers consisting of a demand letter and probate documents were posted at the Property. Posting is not an authorized method of service of original process in an ejectment action under chapter 48, Florida Statutes, and the posted papers did not include a summons issued in this civil action personally delivered to Defendant.

26. To the extent Plaintiff contends that Defendant was served with original process in this action at any time before June 4, 2026, any such purported service was insufficient and invalid. Defendant raises and preserves the defense of insufficiency of service of process in this,

her first responsive pleading. Defendant was personally served with the Amended Summons and the First Amended Complaint for Ejectment on June 4, 2026, and this pleading is served and filed in response to that service.

FIFTH AFFIRMATIVE DEFENSE — ESTOPPEL AND WAIVER

27. For approximately three years before his death, Richard W. Melillo invited and accepted Defendant's residence at the Property and her full-time caregiving and companionship (girlfriend), spouse repeatedly expressed his intent that the Property would belong to Defendant upon his death, and on September 13, 2025 executed the deed conveying the remainder interest in the Property to her.

28. In reasonable reliance on the decedent's promises, expressed intent, and deed, Defendant reduced her pressure-washing and cleaning business's to part-time operation, devoted herself to the decedent's daily care, and spent her own funds on utilities, groceries, medical supplies, repairs, and improvements to the Property, all to her detriment and to the decedent's benefit.

29. Plaintiff, as personal representative, stands in the shoes of the decedent. Having accepted and retained the benefits of Defendant's reliance, Plaintiff is estopped to deny Defendant's title and right of possession and has waived any claim to possession inconsistent with the decedent's deed and repeatedly expressed intent.

SIXTH AFFIRMATIVE DEFENSE — SETOFF AND RECOUPMENT

30. If Plaintiff recovers any damages in this action, which Defendant denies are owed, Defendant is entitled to a setoff and recoupment in the amount of the reasonable value of the caregiving and personal services she rendered to the decedent and the sums she expended for the benefit of the decedent and the Property, including taxes, utilities, insurance, groceries, medical supplies, repairs, and improvements, including without limitation removal, replacement, and refinishing of flooring; interior and exterior painting; hurricane cleanup on two occasions; and appliance and plumbing repairs, in amounts to be proven at trial.

SEVENTH AFFIRMATIVE DEFENSE — GOOD-FAITH POSSESSION UNDER CLAIM OF TITLE

31. At all material times, Defendant has possessed the Property openly and in good faith under a claim and color of title, namely the September 13, 2025 deed, and since the decedent's death she has continued to pay the utilities and to maintain and preserve the Property at her own expense.

32. Any claim by Plaintiff for mesne profits or damages for the use of the Property is barred or limited by Defendant's good-faith possession of the Property under claim of title.

COUNTERCLAIMS

Defendant and Counterclaim-Plaintiff, BRANDI L. RODGERS ("Rodgers"), sues Plaintiff and Counterclaim-Defendant, DENNIS M. HEWETT, as Personal Representative of the Estate of Richard W. Melillo a/k/a Richard W. Radka a/k/a Rick Radka a/k/a Richard W. Kwast (the "Estate"), and alleges:

GENERAL ALLEGATIONS

1. This is an action for declaratory relief, equitable relief, and damages concerning real property located in Pinellas County, Florida, and is within the jurisdiction of this Court.

2. Rodgers is a natural person residing at 13721 94th Ave., Seminole, Pinellas County, Florida 33776.

3. Counterclaim-Defendant Dennis M. Hewett is the personal representative of the Estate, which is being administered in Pinellas County, Florida, and he is sued solely in his capacity as personal representative.

4. Venue is proper in Pinellas County, Florida, because the real property at issue is located in Pinellas County and the causes of action accrued in Pinellas County.

5. The real property at issue (the "Property") is described as: Lot 271, OAKHURST GROVES, according to the plat thereof recorded in Plat Book 46, Pages 16 and 17, Public Records of Pinellas County, Florida; Parcel No. 19-30-15-62658-000-2710; with a street address of 13721 94th Ave., Seminole, Florida 33776.

6. By enhanced life estate deed dated July 9, 2020, and recorded July 14, 2020, in Official Records Book 21077, Page 809, Instrument No. 2020208528, Public Records of Pinellas County, Florida, William F. Melillo reserved a life estate in the Property and conveyed the remainder interest to Richard W. Melillo (the "decedent").

7. William F. Melillo died on July 8, 2022, whereupon fee simple title to the Property vested in the decedent by operation of law.

8. Beginning in or about 2023, at the decedent's invitation and request, Rodgers resided at the Property with the decedent and provided him daily caregiving and companionship services, including meal preparation, medication assistance, transportation to medical appointments, housekeeping, personal care, and management of household affairs. Rodgers's adult son, Scott Joseph Rodgers, who has special needs, resided at the Property as well.

9. To provide that care, Rodgers reduced her pressure-washing business to part-time operation and forwent income she otherwise would have earned.

10. During the decedent's lifetime, Rodgers paid from her own funds household and care expenses for the decedent's benefit, including utilities, groceries, and medical supplies, and she paid for and performed repairs and improvements to the Property, including removal,

replacement, and refinishing of flooring; painting; hurricane cleanup on two occasions; and appliance and plumbing repairs.

11. The decedent repeatedly expressed his intent that the Property would be Rodgers's upon his death and promised her that the home would be hers.

12. On September 13, 2025, the decedent executed a quitclaim deed by which he reserved an enhanced life estate in the Property, coupled with the full power and authority to sell, convey, mortgage, lease, and otherwise dispose of the Property in fee simple without the joinder of the remainderman, and conveyed the remainder interest upon his death to Rodgers (the "Deed"). The Deed was executed in the presence of two subscribing witnesses, Scott J. Rodgers and Christopher T. Kraft. A copy of the Deed is attached as Exhibit "A."

13. The decedent died on JANUARY 2026, unmarried and without any surviving minor child, while residing on the Property as his homestead.

14. Upon the decedent's death, fee simple title to the Property vested in Rodgers by operation of law.

15. Since the decedent's death, Rodgers has remained in possession of the Property and has continued to pay the utilities and to maintain and preserve the Property at her own expense.

16. The Estate, through Hewett as personal representative, claims that the Estate is the fee simple owner of the Property, has demanded that Rodgers vacate, and has sued to eject her, thereby denying and casting doubt upon Rodgers's title to and rights in the Property.

COUNT I — DECLARATORY JUDGMENT (CHAPTER 86, FLORIDA STATUTES)

17. Rodgers realleges and incorporates paragraphs 1 through 16 above.

18. This is a claim for declaratory relief pursuant to chapter 86, Florida Statutes.

19. A present, actual, and justiciable controversy exists between Rodgers and the Estate concerning title to the Property: Rodgers claims fee simple title under the Deed and the decedent's death; the Estate claims that it is the fee simple owner of the Property and seeks to eject Rodgers from it.

20. Rodgers is in doubt as to her rights, status, and title with respect to the Property by reason of the Estate's adverse claims, and she has a bona fide, actual, and present need for a declaration of those rights.

WHEREFORE, Counterclaim-Plaintiff Brandi L. Rodgers respectfully requests that the Court enter judgment: (a) declaring that the September 13, 2025 deed from Richard W. Melillo to Brandi L. Rodgers is valid and effective; (b) declaring that fee simple title to the Property vested in Brandi L. Rodgers upon the death of Richard W. Melillo and that the Estate has no

right, title, or interest in the Property and no right to its possession; (c) awarding Rodgers her taxable costs; and (d) granting such other and further relief as the Court deems just and proper.

COUNT II — CONSTRUCTIVE TRUST (IN THE ALTERNATIVE)

21. Rodgers realleges and incorporates paragraphs 1 through 16 above.

22. This count is pled solely in the alternative pursuant to Florida Rule of Civil Procedure 1.110(g), and only should the Court determine that the Deed is ineffective to vest fee simple title to the Property in Rodgers.

23. The decedent expressly and repeatedly promised Rodgers that the Property would be hers upon his death.

24. A confidential relationship existed between the decedent and Rodgers: for approximately three years she was his live-in caregiver and companion, he depended on her for his daily needs, and he reposed trust and confidence in her with respect to his care and his household affairs.

25. In reliance on the decedent's promises, Rodgers rendered years of caregiving and personal services, reduced her business to part-time, and expended her own funds on the decedent's care and on the maintenance, repair, and improvement of the Property, as alleged above.

26. If the Property were to pass to the Estate notwithstanding the Deed, the Estate would be unjustly enriched by retaining both the Property and the benefits Rodgers conferred upon the decedent and the Property in reliance on his promises.

27. By reason of the promise, the confidential relationship, Rodgers's reliance, and the resulting unjust enrichment, equity requires that the Property be impressed with a constructive trust in favor of Rodgers.

WHEREFORE, solely in the alternative and only should the Court determine the Deed ineffective, Counterclaim-Plaintiff Brandi L. Rodgers respectfully requests that the Court enter judgment: (a) imposing a constructive trust upon the Property in favor of Rodgers; (b) directing the conveyance of the Property to Rodgers; (c) awarding Rodgers her taxable costs; and (d) granting such other and further relief as the Court deems just and proper.

COUNT III — EQUITABLE LIEN (IN THE ALTERNATIVE)

28. Rodgers realleges and incorporates paragraphs 1 through 16 above.

29. This count is pled solely in the alternative pursuant to Florida Rule of Civil Procedure 1.110(g), and only should the Court determine that the Deed is ineffective to vest fee simple title to the Property in Rodgers.

30. Rodgers expended her own funds and labor on the Property in the form of permanent improvements and repairs, including removal, replacement, and refinishing of flooring; painting; hurricane cleanup on two occasions; and appliance and plumbing repairs, and she discharged carrying costs of the Property, including utilities and INSURANCE, both before and after the decedent's death.

31. Rodgers made these expenditures in good faith, under a claim of title and in the expectation of ownership induced by the decedent's promises and the Deed, and the expenditures enhanced and preserved the value of the Property.

32. If the Estate were to take the Property, the Estate would be unjustly enriched by the enhanced and preserved value of the Property at Rodgers's expense, without compensating her.

33. Rodgers is entitled to an equitable lien upon the Property in the amount of the value of her improvements, repairs, and discharged carrying costs, in the total amount of [AMOUNT — SUBJECT TO PROOF].

WHEREFORE, solely in the alternative and only should the Court determine the Deed ineffective, Counterclaim-Plaintiff Brandi L. Rodgers respectfully requests that the Court enter judgment: (a) imposing an equitable lien on the Property in favor of Rodgers in the amount of her improvements, repairs, and discharged carrying costs; (b) determining the amount of the lien; (c) ordering payment of that amount or foreclosure of the lien; (d) awarding Rodgers her taxable costs; and (e) granting such other and further relief as the Court deems just and proper.

COUNT IV — UNJUST ENRICHMENT AND QUANTUM MERUIT (IN THE ALTERNATIVE)

34. Rodgers realleges and incorporates paragraphs 1 through 16 above.

35. This count is pled in the alternative pursuant to Florida Rule of Civil Procedure 1.110(g) and without waiver of Rodgers's position that she owns the Property in fee simple.

36. From approximately 2023 through the decedent's death on DATE OF DEATH JANUARY 2026, at the decedent's request and with the mutual expectation of compensation, Rodgers rendered caregiving and personal services to the decedent, including daily care, meal preparation, medication assistance, transportation, housekeeping, and household management, reducing her own business to part-time in order to do so.

37. The reasonable value of those services is AMOUNT E.G., COMPUTED AT MARKET CAREGIVER RATES MULTIPLIED BY DOCUMENTED HOURS.

38. Rodgers also conferred benefits on the decedent and, if the Court determines that the Property belongs to the Estate, on the Estate, by paying from her own funds for utilities, groceries, medical supplies, repairs, and improvements during the decedent's lifetime, and by paying after his death for utilities, maintenance, and preservation of the Property the Estate claims as its own.

39. The decedent during his lifetime, and the Estate after his death, knowingly accepted and retained these benefits.

40. It would be inequitable for the Estate to retain the benefits of Rodgers's services and expenditures without paying her their reasonable value.

WHEREFORE, in the alternative, Counterclaim-Plaintiff Brandi L. Rodgers respectfully requests that the Court enter a money judgment against Dennis M. Hewett, as Personal Representative of the Estate, for the reasonable value of her services and expenditures in the amount of TOTAL AMOUNT SUBJECT TO PROOF, together with her taxable costs, and grant such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Defendant and Counterclaim-Plaintiff, BRANDI L. RODGERS, demands trial by jury of all issues so triable as of right.

Dated this ____ day of June, 2026.

Respectfully submitted,


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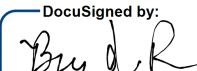
6/11/2026

BRANDI L. RODGERS, pro se
(incorrectly named in the Complaint
as "Brandi Rogers")
13721 94th Ave.
Seminole, Florida 33776
Telephone: [PHONE]
E-mail: [EMAIL]

CERTIFICATE OF SERVICE

6/11/2026

I CERTIFY that on this ____ day of June, 2026, a true and correct copy of the foregoing was served by e-service through the Florida Courts E-Filing Portal upon Joseph M. Murphy, Esq. (Florida Bar No. 112661) and Gabrielle M. Englander, Esq. (Florida Bar No. 1044658), DeLoach, Hofstra & Cavis, P.A., 8640 Seminole Blvd., Seminole, Florida 33772, counsel for Plaintiff.

DocuSigned by:

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6/11/2026

BRANDI L. RODGERS, pro se

EXHIBIT LIST

EXHIBIT A — Quitclaim deed (enhanced life estate) dated September 13, 2025, Richard W. Melillo f/k/a Richard W. Radka to Brandi L. Rodgers (copy).

EXHIBIT B — Enhanced life estate deed dated July 9, 2020, William F. Melillo to Richard W. Melillo, recorded July 14, 2020, Official Records Book 21077, Page 809, Instrument No. 2020208528, Public Records of Pinellas County, Florida (copy).